

KALE REALTY

\$110 MILLION IS WHAT FLINCHING COSTS NOW.

An appeals court just upheld another nine-figure commission settlement.

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**NINE MORE
BROKERAGES JUST
SETTLED. AN
APPEALS COURT
MADE IT STICK.**

\$110.6 million added to more than \$1 billion already paid out in commission litigation.

THE LAWSUITS WERE NEVER REALLY ABOUT THE MATH.

The 8th Circuit just upheld \$110.6 million in Gibson commission settlements from nine brokerages, including Chicago's own @properties through its parent company At World Properties, adding to a combined \$1.018 billion paid out across the nationwide commission litigation. Every one of those cases traces back to a buyer or seller who felt like nobody could explain, in plain language, what they were paying for and why. The rulings aren't really about the percentage. They're about the silence when someone asked.

THE SWAP, BEFORE YOUR NEXT LISTING APPOINTMENT:

- 1 Don't go quiet or apologize when a client asks about your fee.**
Silence reads as guilt, and courts have now attached real dollars to it.
- 2 Do have one rehearsed sentence that says what you do for the fee, in plain language.**
Not a script you read off a page. One sentence you can say without blinking.
- 3 Do say it before they ask.**
Bring it up in the listing or buyer consultation, not as a defense after the question lands.

THE TAKEAWAY

THE FEE CONVERSATION ISN'T GOING AWAY.

Have your one sentence ready before the next appointment does.